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Submitted Via Email to: ostp-ai-rfi@nitrd.gov

To: Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO), National Science Foundation

RE: Request for Information - Development of an Artificial Intelligence (AI) Action Plan ("Plan")

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Action Plan and associated documents without attribution.*

The American Council of Life Insurers (ACLI) appreciates the opportunity to provide feedback in response to the National Science Foundation's February 6, 2025, posting of its "Request for Information - Development of an Artificial Intelligence (AI) Action Plan ("Plan")" (RFI) to the Federal Register. In accordance with a January 23rd Executive Order signed by President Trump, we understand that the purpose of this RFI is to aid in the development of a policy plan that helps ensure the continued growth and sustainability of the U.S. AI infrastructure while also continuing to allow for public sector innovation in this space.

ACLI advocates on behalf of 275 member companies dedicated to providing products and services that promote consumers' financial and retirement security. Financial security is our core business, and retirement security for all Americans is a critical mission. We protect 90 million American families with financial products that reduce risk and increase financial security, including life insurance, annuities, retirement plans, long-term care

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The American Council of Life Insurers is the leading trade association driving public policy and advocacy on behalf of the life insurance industry. 90 million American families rely on the life insurance industry for financial protection and retirement security. ACLI's member companies are dedicated to protecting consumers' financial wellbeing through life insurance, annuities, retirement plans, long-term care insurance, disability income insurance, reinsurance, and dental, vision and other supplemental benefits. ACLI's 275 member companies represent 93 percent of industry assets in the United States.

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insurance, disability income insurance, reinsurance, and other supplemental benefits such as dental and vision.

Our country's life insurance companies have long been committed to providing access to financial security for all Americans, regardless of where or how they work, their life stage, or the economic status of their household. Life insurance products play a significant role in financial empowerment due to their transformative ability to provide financial security and build intergenerational wealth.

However, it should also be acknowledged that the life insurance industry is well regulated by the insurance commissioners in each state, and this extends to the use of technology. The National Association of Insurance Commissioners (NAIC) recently developed a *Model Bulletin on the Use of Artificial Intelligence Systems by Insurers* (NAIC AI Model Bulletin). Critically, the NAIC AI Model Bulletin enumerates how existing state laws to protect consumers of insurance products, including the *Unfair Trade Practices Model Act* (NAIC Model #880) and *Unfair Claims Settlement Practices Model Act* (NAIC Model #900), apply to the insurer uses of advanced technologies such as AI. The NAIC AI Model Bulletin has been adopted in nearly 20 states so far (with more expected in 2025), and we support broader adoption to ensure consistent requirements for insurers nationwide.

America's life insurance industry is taking action to empower working class families across the country achieve economic prosperity. The adoption of emerging technologies such as AI enables life insurers to fulfill our core mission of enhancing financial security for millions of people. We also stand behind the strength of our state-based regulatory system to govern the continued development and implementation of this technology. Therefore, any Plan developed by the federal government on AI should defer to the NAIC and state insurance departments regarding matters related to life insurers and their products.

Thank you once again for considering our feedback. We look forward to answering any questions you may have.

Sincerely,

PS – Along with this letter, we are also providing our August 2, 2024, response to the U.S. Department of the Treasury Request for Information on Uses, Opportunities, and Risks of Artificial Intelligence in the Financial Services Sector” (RFI) to the Federal Register (Document Citation - 89 FR 50048).